

Tentative Rulings for August 24, 2026 Department M302

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M302 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT IN-PERSON OR VIA ZOOM VIDEO WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 672 7660**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2512487	SWAINE VS SMITH	MOTION TO STAY CIVIL ACTION (OR IN THE ALTERNATIVE, STAY DISCOVERY) PENDING RESOLUTION OF CRIMINAL PROCEEDINGS

Tentative Ruling: Deny without prejudice. Continue the TSC to March 23, 2027.

Defendants provide no valid justification to seek an indefinite stay on the pending civil litigation. Neither the Court's inherent powers to manage and control its court proceedings nor the cases cited by Defendants warrant a finding that they are entitled to a stay of proceeding in the civil action while the criminal action of one Defendant is pending. "[W]hen both civil and criminal proceedings arise out of the same or related transactions, an objecting party is generally entitled to a stay of discovery in the civil action until disposition of the criminal matter. [Citations.]" (*Pacers, Inc. v. Superior Court* (1984) 162 Cal.App.3d 686, 690.) When deciding whether a stay should be granted, the Court must consider the particular circumstances and competing interests involved in light of the 5-factor framework of *Keating v. Office of Thrift Supervision* (9th Cir. 1998) 45 F.3d 322.

As to Defendant Ashley Smith who is facing criminal prosecution there is no indication that her constitutional rights under the Fifth Amendment are yet implicated to justify an indefinite stay on either the entire action or a limited accommodation of staying only the discovery directed against her. There is no indication that Ashley has yet invoked her privilege against self-incrimination in response to a specific question asked in discovery for the Court to ascertain whether Plaintiffs are seeking information that might tend to incriminate Defendant Ashley Smith. The motion is denied without prejudice to allow Smith to refile once such rights are implicated.

As to Defendant Russell Smith, he is not a criminal defendant whose Fifth Amendments rights are implicated in the criminal case of Ashely Smith arising out of the same incident which is the subject of this civil litigation. Hence, the *Keating* framework has no application as to Russell Smith which has been crafted to balance the competing interests when a criminal defendant is forced to choose between testifying in a civil matter and asserting her Fifth Amendment privilege.

2.

CASE #	CASE NAME	HEARING NAME
CVME2512605	SHEPPARD VS SERAT	MOTION TO STRIKE 1 ST AMENDED COMPLAINT

Tentative Ruling: Grant in part to strike only the following portions of the First Amended Complaint ("FAC") concerning punitive damages as requested by Defendant as referenced in page 1, line 26 through page 3, line 2 in the notice of motion:

Pg. 3, Ln. 11: "recklessly and/or intentionally"

Pg. 4, Ln. 4-5: "The despicable nature of Defendants' behavior is reflected by the fact...."

Pg. 4, Ln. 10, 11-13: "The aforesaid acts and/or omissions of" and "willful and wanton in that said Defendants demonstrated a conscious and deliberate disregard of the rights, safety, and interests of others by willfully...."

Pg. 17, Ln. 28- Pg. 18, Ln.1-3: “Exemplary and punitive damages in an amount appropriate to punish Defendant MELODY ANN SERAT, and DOES 1 through 100, Inclusive, and to deter others from engaging in similar wrongful conduct in an amount to be shown according to proof....”

Deny as to remaining portions of the FAC referenced in the notice of motion.

Grant with 30 days leave to amend.

No facts have been alleged to indicate that Defendant acted with malice, oppression, or fraud. Because it is not alleged that Defendant acted with an intent to injure Plaintiffs, the ultimate facts demonstrating a despicable conduct, which requires more than a willful and conscious disregard, need to be alleged. Here, Defendant is alleged to have been driving while intoxicated under the influence of alcohol or drugs. As noted by the Supreme Court in *Taylor v. Superior Court*, *supra*, 24 Cal.3d at 900, driving a vehicle while intoxicated is not itself a basis for a finding of conscious disregard of safety. Rather, the pleading must be supported by allegations constituting malice within the meaning of section 3294. Here, the FAC alleges that the despicable conduct constituting malice is that Defendant, aftermath of the accident, attempted to conceal evidence and to deny being involved in the accident. (FAC, ¶ 10.) However, no matter how despicable the conduct may be, it is irrelevant to Plaintiffs’ claim for negligence as events which occurred after the accident is not what is alleged to have caused Plaintiffs’ injuries. Plaintiffs also allege a long list of the Vehicle Code provisions which have been violated by Defendant. However, mere conclusory allegations that Defendant violated the law does not supply the facts supporting the claim for punitive damage. Therefore, the improper allegations related to Plaintiffs’ claim for punitive damages are subject to be stricken.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2108099	SANTOS V. VELOCITY	OSC RE: CONSOLIDATION

Tentative Ruling: Consolidate the case ending in 8159 into this matter, ending in 0899 (With a *jury* trial set on February 5, 2027—no opposition was filed. Case CVSW2108099 is deemed the leading case.

4.

CASE #	CASE NAME	HEARING NAME
CVME2608159	PELAYO VS STIRLING	MOTION FOR LEAVE TO FILE SECOND AMENDED CROSS-COMPLAINT

Tentative Ruling: Deny—no Proof of Service.

5.

CASE #	CASE NAME	HEARING NAME
CVME2510845	ALLEN V. TARPLEY	CMC AND OSC

Tentative Ruling: Continue the CMC and OSC to April 1, 2027. Sanction Plaintiff \$500.00, on the OSC for failing to file the POS and/or file a LR 3116 declaration.

6.

CASE #	CASE NAME	HEARING NAME
CVME2510811	DEL ROSARIO V. LOENZANA	CMC AND OSC

Tentative Ruling: Continue the CMC and OSC to April 1, 2027. Sanction Cross-Complainants \$500.00, on the OSC for failing to file the POS and/or file a LR 3116 declaration.

Vacate the hearings on the motions to compel on September 14, 15, and 22. The parties are ordered to meet and confer (M&C) in person, by telephone, or via visual conferencing to resolve their discovery disputes. If the parties are unable to reach an agreement, the moving party shall request an Informal Discovery Conference (IDC) by emailing the Court Assistant at DeptM302@riverside.courts.ca.gov, with all parties copied. The moving party shall give notice about how all parties can appear by Zoom.

Three days prior to the IDC, the parties shall file a joint IDC Brief, not exceeding three pages, outlining the unresolved disputes that remain. If, after the IDC, the Court is unable to assist the parties in resolving their dispute, then the court will re-calendar the hearings on the discovery motion and the request for sanctions.

The parties are required to work out their discovery disputes in good faith before seeking court intervention. Plaintiff has extended numerous extensions, therefore, if discovery is not immediately provided, without objections, then court intends to grant full sanctions.

When it comes to trying to resolve discovery disputes, the obligation to meet and confer consists of “more than the mere attempt by the discovery proponent to persuade the objector of the error of his ways ... the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294, emphasis added.) There must be a “serious effort” at negotiation and informal resolution, which “entails something more than bickering” with opposing counsel. Arguing is not the same as informal negotiation. (Townsend v. Superior Court (1988) 61 Cal.App.4th 1431, 1435.)

7.

CASE #	CASE NAME	HEARING NAME
CVME2509106	COBB V. CWI, LLC	CMC AND OSC

Tentative Ruling: Discharge the OSC. A 10-day jury trial is scheduled for June 4, 2027. All parties must strictly comply with Local Rule 3401 and should familiarize themselves with *Reales Investment v. Johnson* (2020) 55 Cal.App.5th 463. Failure to comply with Local Rule 3401 may result in the imposition of evidentiary sanctions. The parties are directed to download, review, and follow the trial binder preparation pamphlet available on the court’s website. All experts shall be scheduled to be deposed no later than 20 days prior to the first day of trial, absent good cause. A Zoom MSC will be set by the Court—once set, the Court will provide notice.